



POLICE DEPARTMENT

November 9, 2022

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2020-22618
Police Officer Nikaurys Martinez	:	
Tax Registry No. 953062	:	
PSA 9, VIPER 3	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the Department: Emily Collins, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Eric Sanders, Esq.
The Sanders Firm, P.C
30 Wall Street, 8th Floor
New York, NY 10005

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 19, 2020, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer struck his daughter with his hand or a belt.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 19, 2020, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer knowingly acted in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen (17) years old.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

3. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 20, 2020, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer struck his daughter with his hand.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

4. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 20, 2020, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer inappropriately displayed and pointed his firearm at his daughter or at himself.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

5. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 20, 2020, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer knowingly acted in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen (17) years old.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

GENERAL REGULATIONS

6. Police Officer Nikaurys Martinez, while assigned to Housing PSA #6, on or about August 20, 2020 and August 26, 2020, having been involved in an unusual police occurrence or an off-duty domestic incident, wrongfully failed to notify the Operations Unit in a timely manner.

P.G. 212-32, Page 1, Paragraph 1

OFF DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF SERVICE
COMMAND OPERATIONS

P.G. 208-37, Page 4, Additional Data

FAMILY OFFENSES AND
DOMESTIC VIOLENCE
INVOLVING UNIFORMED
MEMBERS OF THE
SERVICE – ARRESTS

P.G. 208-36

FAMILY OFFENSES/
DOMESTIC VIOLENCE –
ARRESTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 29, 2022. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Lieutenant Karolina Wierzchowska as its sole witness and entered into evidence a recording of her interview with Respondent's daughter, Minor. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, the tribunal finds Respondent Not guilty of Specification 4 (inappropriate display and pointing of firearm at daughter/self) and Guilty of:

- Specifications 1 & 3- striking his daughter with hand and belt
- Specification 2 & 5- endangering the welfare of a child on two dates
- Specification 6- failing to notify Department of domestic incident.

Recommended penalty: 31 pretrial suspension days; 30 suspension days to be served; Dismissal
Probation & OASAS counseling.

ANALYSIS

This case involves multiple allegations made by Respondent's then 13 year-old daughter (hereinafter "Minor") who claims that over a two-day period in August 2020, he struck her multiple times with his hand and with a leather belt and that he menaced her with his firearm. Below is a summary of the uncontested evidence.

Respondent and the Minor's mother separated in 2016. The parents arranged for the Minor to stay with Respondent in his studio apartment during his RDOs. The Minor began exhibiting behavioral problems after the 2016 separation. For example, the Minor developed a contentious relationship with her mother that culminated in at least one physical altercation and she began to engage in problematic conduct at school related to her cell phone usage.¹ Evidence was also presented that the Minor struggles with mental health challenges, including anxiety and depression. (Tr. 59-61, 99, 132, 136) A recording of the Minor expressing herself at a breaking point underscored the seriousness of her condition. (Resp. Ex. P)

Respondent testified that during this period his relationship with the Minor was more harmonious than the Minor's relationship with her mother, who was regarded as the disciplinarian. In spring 2020, a neighbor called ACS to report an incident at the mother's home.

¹ Respondent entered into evidence a number of text messages, including photo messages, that the mother had texted him of minor scratches and markings on her arm and wrist. In October 2019, Respondent texted the mother, "Apparently you can't deal with her, I don't have those arguments with her. I get her to do what she needs to do without having to argue and yell." In a March 22, 2020 message, the mother texted Respondent, "I need to speak with you about [Minor]," followed by two photos of a scratch on her arm and redness to her hand. On April 28, 2020, she sent another text message stating, "I'm all scratched from her," with a photo of her arm with a scratch on it. (Resp. Exs. B8, B12, B15) A number of other photos of scratches and small marks on a woman's chest and arm (face unseen) are in evidence as Respondent's Ex. A; Respondent testified that A5 and A6 were from April 2020 when the mother "verbatim" told him she was assaulted by their daughter after she took away the Internet. He estimated other similar photos of scratches and marks were from November or December 2020. (Tr. 83-87)

The Minor then alleged that her mother had struck her with a wooden spoon. This resulted in Respondent taking physical custody of the Minor in April and May 2020. According to Respondent, the ACS case against the mother was eventually dismissed. (Tr. 60-62, 66, 80-81, 97-98, 112, 120)

During the summer of 2020, both parents were struggling to curtail what Respondent described as the Minor's excessive and "concerning" internet use. Respondent explained that the parents had multiple reasons for restricting the Minor's phone and data usage including; data overcharges, late night internet sessions ending at 5 a.m., and the posting of content "that wasn't suitable for a 13 year-old." Respondent was especially alarmed that the Minor referenced "sex" on Instagram and that she communicated with another 13 year-old girl in California about sensitive topics such as sexual abuse and suicidal ideations. He also noted his disapproval of her posts in support of Black Lives Matter and a digital drawing she created in which an NYPD flag was being burned and the initials "A.C.A.B." appeared. Respondent recalled that in June 2020, the Minor tried to grab her phone out of his hands by force in an attempt to prevent him from reviewing her digital communications. After that incident, Respondent exchanged the Minor's iPhone for a flip phone. (Tr. 63-66, 70-76, 129-31)

The charges against Respondent focus on five incidents which allegedly occurred on August 19 and 20, 2020. A summary of the uncontested evidence pertaining to these incidents is set forth below.

1. During the morning of August 19, 2020, Respondent picked up his daughter. The plan was to have her spend the next two days at his home. According to Respondent, due to her prior misbehavior, the Minor was under "strict orders...not to use the phone as a hot spot" to access the internet. That afternoon, the Minor's mother advised him that she had caught their daughter "using the computer, even after she had taken away the internet at home [and] shut down the Wi-Fi." As Respondent and the Minor sat in his car at a

supermarket parking lot, an argument ensued concerning her phone and internet access. (Tr. 63, 66-67, 69) Respondent asserts that the Minor was “indifferent” to his questions about why she was ignoring the internet ban. The Minor contends that Respondent became “mad” because she “showed no emotion and wasn’t upset” during their interaction. (Dept. Ex. 1A at 6-7) There was physical contact during this encounter in the car, the nature of which is in dispute.

2. After arriving at Respondent’s studio apartment, the quarrel about the Minor’s internet use continued. Respondent described the Minor as “defiant” and testified that she refused to respond to his insistent demands that she explain her disobedience. (Tr. 67-68, 139-41) The Minor told NYPD investigators that her father became angry because he wanted her “to like have a reaction to what he was saying.” As she lay on the bed in a pair of jean shorts, Respondent used a leather belt to strike her approximately five times on her buttocks. At that time, the Minor exhibited no reaction to the use of corporal punishment, however, she told NYPD investigators that her buttocks hurt for several days thereafter. Both she and Respondent noted that the belt strikes left no marks. During her interview with NYPD investigators, the Minor explained that both in the apartment and in the car, she did not get upset or “show emotion” when her father hit her and that she believed this made him angrier. (Dept. Ex. 1A at 5-9) Respondent testified that, “she turned around and looked at me as [if] nothing happened” when he hit her. (Tr. 141)
3. Respondent and the Minor both assert that he had never used corporal punishment against her prior to this date. (Tr. 142-43, Dept. Ex. 1A at 6-7)
4. On August 30, 2020, the Minor disobeyed her parents again by accessing the internet on her Nintendo Switch. Respondent demanded that the Minor hand over the device but she resisted. A physical struggle for the device ensued, and Respondent admittedly “reacted” by striking the Minor in the face multiple times with an open hand. Both recall the Respondent stating, in sum and substance, “How dare you fight me.” After this physical altercation, the Minor showered and they both calmed down. (Dept. Ex. 1A at 5-9)
5. That evening, the Minor was eating a hamburger prepared by Respondent. As they watched television, they listened to reports concerning Breonna Taylor’s death. It is uncontroverted that the Minor had previously made social media posts in support of the Black Lives Matter movement which Respondent had concerns about. At one point, he

had argued with her that Black Lives Matter was “an organized Marxist group” that did “not care about Black lives.” That night, the Minor told Respondent that she opposed the actions taken by the police in the Breonna Taylor case. (Tr. 155-59, 165; Dept. Ex. 1A at 11-14) Respondent was admittedly “upset” because the Minor had “always been around the police...a 13 year-old [daughter of PO] taking up these views.” (Tr. 164) He reminded her that he was a police officer, and that her uncle was a police officer. (Tr. 160) Within the context of this interaction, both parties recall Respondent saying, in sum and substance, “as a cop if somebody’s pointing a gun at me and I have a gun, I’m going to shoot.” The Minor argued with him that she would opt to run away instead of shooting. (Tr. 157-58; Dept. Ex 1A at 14) Respondent testified that he then removed his firearm from a safe draw and “put [his] gun together” before driving the Minor back to her mother’s home in what he described as an “[un]safe” neighborhood. (Tr. 136-37, 163, 172-73) Whether Respondent pointed that firearm at the Minor and then at himself is in dispute.

6. During the drive to her mother’s home, their interaction remained strained. Respondent was admittedly frustrated with the Minor and slapped her once on the head with an open hand. (Tr. 167-68; Dept. Ex. 1A at 19)
7. Respondent and the Minor recounted that after Respondent struck her he stated, in sum and substance, that he would never allow anyone to hit her like that and if they did he would have to defend her. He added, “God knows what I will do.” (Dept. Ex 1A at 20; Tr. 154)
8. Respondent confirmed that after he was arrested, the Minor daughter spent two weeks in the psychiatric ward of Bellevue Hospital. He was not allowed to communicate with her. Upon her release, Respondent saw the Minor’s TikTok video describing how they argued and how removing her internet access had affected her mental health. (Tr. 98-99)

It is further uncontested that during a therapy session which had already been scheduled for August 21, 2020, the Minor informed the therapist about the incidents that took place during the preceding two days in Respondent’s home. The therapist contacted the Administration for Children’s Services (“ACS”). ACS visited the mother’s home on August 22 and August 24. Both times, the mother called to advise Respondent that ACS was at her home. Respondent

called his union delegate to seek advice; the delegate told him “find out what’s going on before you go to the ICO.” Respondent advised his ICO on August 26 that Child Protective Services had been to his home after his daughter made allegations against him. (Tr. 168-72)

Department investigators interviewed the Minor and her mother on August 26, 2020. After that interview, the NYPD investigators brought the Minor and her mother to a precinct to file a criminal complaint report. Respondent was arrested on August 28, 2020. An audio recording and transcript of the Minor’s statement is in evidence. (Tr. 22, 34-35; Dept. Ex. 1, 1A). An NYPD investigator testified that Respondent’s criminal case was adjourned in contemplation of dismissal. Respondent testified that the case was dismissed on May 7, 2021. (Tr. 35, 37, 122-23)

Specifications 1, 2, 3 & 5: Endangering the welfare of a child; Physical strikes

The first issue to be addressed is whether Respondent should be subject to Department discipline for endangering the welfare of a child after admittedly striking his daughter multiple times on August 19 and 20. This Tribunal has no desire to sit in judgment of Respondent’s parenting choices and certainly understands the necessity to protect a child from excessive and inappropriate internet use. In fact, some of the charged instances, if they stood alone, would unlikely rise to the level of sanctionable misconduct. Here, however, Respondent admitted that he repeatedly used his hand and a belt to hit the Minor multiple times over the course of two days. Moreover, I credit the evidence establishing that he berated and humiliated the Minor and caused physical injuries and pain to her buttocks and face. Accordingly, I find that Respondent’s actions rose to the level of misconduct and constituted a prohibited domestic assault.

In making this finding I note that Respondent’s counsel correctly argued that parents in New York State may use *reasonable* corporal punishment to the extent “necessary to maintain

discipline.”² (See *Matter of Anthony C.*, 201 A.D.2d 342 [1st Dept. 1994]) This right, however, is not unfettered. In fact, although no *per se* rules have been established, the New York State Family Court Act restricts the use of *excessive* corporal punishment against children.³ For the reasons set forth below, the pattern exhibited by Respondent qualifies as “excessive.”

The uncontested facts alone are sufficient to establish misconduct. As noted above, both Respondent’s testimony and the Minor’s hearsay statement confirm that Respondent struck her three distinct times during this two-day visit: (1) he used a leather belt to hit her at least five times on the buttocks; (2) the next day he struck her face with his hand four times while trying to get a mobile device she was holding; and (3) he hit her on the back of the head as he drove the Minor to her mother’s home. This troubling conduct was exacerbated by the context in which each of these domestic assaults took place.

This tribunal carefully reviewed the recording of the Minor’s August 26, 2020 NYPD interview and read the accompanying transcript. Although she did not appear at the hearing, the Minor’s hearsay statement presented a credible account that Respondent’s anger escalated, became out of control and culminated in violence which caused her injury. I also credit her statement that Respondent’s physical assaults were punctuated by humiliating taunts and

² Penal Law § 35.10(1): The use of physical force upon another person which would otherwise constitute an offense is justifiable and not criminal under any of the following circumstances: 1. A parent, guardian or other person entrusted with the care and supervision of a person under the age of twenty-one ... may use physical force, but not deadly physical force, upon such person when and to the extent that he reasonably believes it necessary to maintain discipline or to promote the welfare of such person.

³ Family Court Act § 1012 (f) (i) (B) defines a “neglected child” as a child less than 18 years of age whose “physical, mental or emotional condition has been impaired or is in imminent danger of becoming impaired as a result of the failure of his parent or other person legally responsible for his care to exercise a minimum degree of care; in providing the child with proper supervision or guardianship, by unreasonably inflicting or allowing to be inflicted harm, or a substantial risk thereof, **including the infliction of excessive corporal punishment** . . . or by any other acts of a similarly serious nature requiring the aid of the court.”

insults.⁴ In sum, her corroborated hearsay statement, although not impeccably reliable, was a straightforward account that had the ring of truth to it and bore the indicia of reliability required to be given significant weight.

During the NYPD interview, the Minor explained that she frequently stayed with her father on his days off. At approximately 1600 hours on August 19, her father “got mad over [her] phone,” took it away and began “yelling a lot.” The Minor told the investigators, “I was trying to explain to him what I was doing. He wasn’t listening and then, he hit me like right here, like I had my mask on and he hit me like right here near my ear” with an open palm. The Minor also recalled Respondent saying she had a “dumb look” on her face.” (Dept Ex. 1A at 2-5)

The Minor recounted that when they returned home to Respondent’s studio apartment, she was “on the bed with the Switch [a mobile gaming device]” when Respondent became angry, removed his leather belt and began hitting her “over and over” on her buttocks. She believed that he hit her five or six times with the metal buckle because it hurt afterwards “for a really long time.” When asked why Respondent hit her, the Minor remembered that he was “saying all these hurtful things” to “get a reaction” from her:

It was like, because I wasn’t showing any emotion or pain or anything and he got mad over that because I wasn’t getting upset. And it’s like, I remember the same thing happening in the car. I was asking like why he hit me ‘cause like he just wanted to get me upset. That’s why he was like saying all these really hurtful things. He didn’t like really care. He just wanted me like to have like a reaction to what he was saying. (Dept. Ex. 1A at 6-7)

The Minor specifically recalled him saying that she had a “dumb look on her face.” When asked if she was injured, she offered, “I don’t know if it’s like an injury. It just hurt a lot in that area.”

⁴ The day before trial, this tribunal received a letter from her mother in which she explained that, although the Minor was subpoenaed, she could not allow her daughter to testify at this hearing because it could have a negative impact on her mental health, which remains precarious to date.

She recalled watching a concert before going to bed and Respondent commenting again that she looked “stupid” and “like [she] was being brainwashed.” (Dept. Ex. 1A at 5-11)

The next day, the Minor used her gaming device because Respondent would not allow her to use the TV or the internet. She acknowledged that she had a DNS server on the Nintendo Switch that allowed her to get online without using Respondent’s Wi-Fi. At around 1900 hours she was watching YouTube videos but hit the home screen button when her father asked what she was doing. She recalled him “getting mad” and yelling about her hiding things from him. She detailed that he asked why she had “a back door setup” for the internet, but did not listen to her explanation that it was “really not a big deal.” (Dept. Ex. 1A at 11-12)

According to the Minor, he then began slapping her “hard” with an open hand, on both sides of her face as he asked, “Is it a big deal? Does it feel like a big deal now?” She answered “no” multiple times and he continued hitting her “over and over.” She did not provide an exact number of times he slapped her but stated it was “a lot.” When she tried to block him from hitting her face, he began hitting her all over her body, demanding, “How dare you fight me? How dare you try to fight back?” She recalled him hitting her in the right eye, which “hurt a lot.” This caused her to concede, “Okay fine, it’s a big deal” and he stopped hitting her. Respondent told her to take a shower before he drove her to her mother’s home. She told the NYPD investigators that in the bathroom she saw that her right eye and her face were “red” and “swollen.” (Dept. Ex. 1A at 12-14)⁵

When the Minor came out of the bath, she ate a hamburger Respondent had prepared and they started talking about Black Lives Matter.⁶ They continued arguing and Respondent told her

⁵ At the interview, the Minor indicated that she would email the NYPD investigators the cell phone photo she took of her injured eye and explained that ACS had also taken photos. No photos were entered into evidence. (Dept. Ex. 1A at 21-23)

⁶ It is undisputed that Respondent accessed his firearm soon thereafter. This facts relating to the firearm charge are discussed on pages 15-17 below.

to get ready because he was driving her back to her mother. As they walked to the car, the Minor asserted that Respondent made negative comments about musicians she liked and “kept talking about the riots.” She recalled him telling her, “The only difference between you and the kids I work with is that I’m allowed to hit you.” He also told her, “I would never let anybody hit you like I hit you” and that he would “kill someone if they hit her the way he had.” She was humming and flapping her hands “to calm herself” and her father hit her in the back of the head, “mocking” her. Respondent also told her she “looked stupid” and that he was going to determine “how autistic” she was. (Dept. Ex. 1A at 18-20)

In sum, there were several key factors which convinced this tribunal that the Minor told the truth when she described Respondent’s enraged demeanor, humiliating insults and injuries she received when he admittedly struck her. She did not appear to exaggerate the length and scope of the assaults and did not exaggerate the extent of the injuries she received. In fact, pain that lasted a few days as well as redness and swelling of the face is wholly consistent with the corporal punishment Respondent admitted to. Likewise, the type of angry insults she claims Respondent hurled did not appear fabricated and were concordant with Respondent’s own testimony of about his frustrations. For example, Respondent emphasized during his testimony that he was concerned that the Minor showed no reaction or emotion when he confronted and hit her, even with a belt. This is consistent with the Minor’s assertion that Respondent threatened to get her evaluated to determine “how autistic” she was.

In contrast, this tribunal was highly skeptical of Respondent’s description of his demeanor during the multiple times he admittedly struck the Minor as punishment for breaking his internet rules. At trial, Respondent attempted to persuade this tribunal that, although he used corporal punishment, he had a “right to discipline her” and was not “angry” or out-of-control.

(Tr. 69, 165) I found much of this depiction to be somewhat dubious and defensive, particularly when he attempted to minimize his ire and his reactions.

Respondent's account of what led him to use a belt to strike the Minor illustrates this point. Respondent testified that in the supermarket parking lot, he directed his daughter to turn over her phone because her mother advised him that she had been disobedient about internet usage rules. When she refused, he reached over to grab it saying, "Why do you keep doing this? You were told multiple times." (Tr. 66-67) Although Respondent specifically denied the Minor's assertion that he smacked her by the ear, he did acknowledge that the Minor "complained" about "the way I reached over to get the phone." (Tr. 67) Given the totality of circumstances, I do not credit this denial and find that it is more likely than not that he did strike the minor and yell insults.

Respondent also asserts that in the store he warned the Minor that he would "need an explanation" for her persistence in breaking their rules, but the Minor was "indifferent." At his apartment he asked, "Are you ready to tell me?" When his daughter said "no," he dispassionately told her he would "have to spank her" if she did not answer before he put away the groceries. After he finished, she was laying on the bed and persisted in her refusal. He insisted "one last time" that she provide an explanation. According to Respondent, he told her, "I'm sorry. I'm going to have to spank you," removed his leather belt and hit her on the buttocks, over her denim shorts, four or five times "not at full strength." (Tr. 67-68, 138-41)

The tribunal does not credit Respondent's account that at this moment he acted in such a calm, unemotional and controlled manner. Not only was this the first time he had ever used corporal punishment, but according to his own testimony he then "cried," and told his daughter, "I can't believe I had to get this point." He also called the Minor's mother to say, "She earned a

spanking. I had to hit her with the belt...she's getting aggressive here with me." These admissions betray his assertions that he was devoid of anger at that time. (Tr. 77, 141-42, 146-47)

Respondent's attempts to minimize the severity of his conduct is also illustrated by what transpired the next day. By the evening of August 20, he "felt bad" that the Minor had no computer, internet or phone access for 24 hours and he agreed to let her use her Nintendo Switch gaming device. An hour after she began using it, he saw a white screen reflecting on her face. When he asked what she was doing, she hit the home screen, causing the screen to go blank. Respondent became suspicious that she had accessed the internet and told her to step back so he could see the device. He discovered that the Minor had used a "backdoor" connection to "circumvent" his Wi-Fi and access a web browser, which directly violated his rules. According to Respondent, the Minor began forcibly trying to take back the device and he ordered her, "to stop right now." She ignored him. When her elbows "hit [his] rib", this caused him to "react" and he struck her four times in the face with an open hand. (Tr. 77-80, 148-52)

Respondent's own account at this point underscores how out of control he was during those two days. On direct examination, he recounted that after the incident he merely told the Minor, "That's it, you're done. You're not getting this." On cross-examination, however, he admitted saying, "I never had to hit you like that. I wouldn't allow anyone to hit you like that...Not even I, your father, is allowed to be hitting you this way. If someone were to hit you the way I did, I will have to defend you. God knows what I will do." (Tr. 80, 152-54) In sum, despite his attempts to minimize his transgressions and their consequences, even Respondent acknowledged that his conduct was beyond the bounds of "reasonable" discipline.

Accordingly, I find Respondent guilty of Specifications 1, 2, 3, and 5.

Specification 4: Menacing the Minor with a Firearm

Specification 4 alleges that on August 20, 2020, Respondent inappropriately displayed and pointed his unloaded firearm at his daughter before loading it and training it under his chin as she watched in fear. The scenario described is admittedly chilling. However, unlike the specifications discussed above, where the facts alleged in the hearsay statement were largely corroborated by Respondent, the Minor's hearsay account of this interaction was starkly inconsistent with Respondent's version of events. After careful review, I find that the evidence presented at trial was insufficient to support this charge.

What is uncontroverted is that after he struck the Minor in the face four times, she bathed and they both calmed down. As the Minor was eating a meal prepared for her by Respondent, they watched a television report on the death of Breonna Taylor. The Minor told Respondent that she opposed the actions taken by the police in that case. Respondent was admittedly "upset" because the Minor had "always been around the police...a 13 year-old [daughter of PO] taking up these views."⁷ Within the context of this argument, both parties recall Respondent saying, in sum and substance, "as a cop if somebody's pointing a gun at me and I have a gun, I'm going to shoot." The Minor argued that she would opt to run or "get away" instead of shooting. (Dept. Ex. 1A at 14; Tr. 157, 160, 164-67)

Respondent testified that he was troubled by this, but not angry "to the point of yelling and screaming," and asked her "Are you aware that I'm a police officer? Are you aware my

⁷ Respondent recounted that in June 2020, they discussed a "Black Lives Matter" Google card she created on the computer and told her he was proud of her for trying to do "her part," but that she needed to understand that he "[did not] sympathize with...the ideology...." On cross-examination, he confirmed telling her in June 2020 that Black Lives Matter was a "Marxist group" that "did not care about black lives." Respondent also discussed finding an image the Minor drew on Instagram of a police flag burning with the hashtag ACAB, which he understood to mean "all cops are bad." (Resp. Exs. G1 & G2) The timing of when he became aware of it is imprecise. (Tr. 104-06, 134, 158-59)

brother is a police officer?" He claimed his daughter "cut [him] off" and asked when they were leaving for her mother's home. Respondent next recalled telling his daughter to "go get [her] stuff." He then removed his gun from the safe, put it together and they both walked to the car. (Tr. 158-63) He confirmed that he carried his firearm with him "at all times" and that the Department encourages officers to always carry it and be "fit for duty." He added that the mother lived in "a[n] [un]safe area." (Tr. 173-74)

The Minor told the NYPD investigators that Respondent "kept yelling" and saying "all these things about Breonna Taylor and like how her boyfriend was a criminal and...that's why she got shot...." She tried to reply, but Respondent yelled that Black Lives Matter was "trying to kill [him]" and was an "organized Marxist group" that did not care about "black lives." She further recounted, "I remember it escalated and he told me 'so somebody is shooting at you and you have a gun, you're not gonna shoot back right away?'" She responded that she would try to get away rather than shooting. (Dept. Ex. 1A at 14)

According to the Minor, it was at that point that Respondent "literally . . . got up and got his gun." She recounted that he unloaded the firearm as she repeatedly implored him to put it down. From five feet away, he then pointed the unloaded firearm at her for approximately ten seconds, demanding to know "Oh somebody's doing this to you, you're not gonna shoot at them? You're not gonna shoot at them?" The Minor explained she was not really listening to his words, just repeatedly asking him to put the gun down. After he did, Respondent "kept going on" arguing about Black Lives Matter before picking the firearm up again, loading it and pointing it under his own chin. He then told her "like not to tell." (Dept Ex. 1A at 14-18, 27)

The primary evidentiary question raised here is whether the Minor's uncorroborated hearsay statement is sufficiently reliable to support a finding that Respondent menaced her with a firearm.

In a hearsay case of this nature, particular attention must be paid to the evidence. This tribunal has held many times that while hearsay is admissible in administrative proceedings, and may be the sole basis for a finding of fact, it must be carefully evaluated before it is relied upon. The more important the evidence is to the case, the more critically it should be assessed. Where, as here, the statements of the hearsay declarant are outcome-dispositive, administrative tribunals are reluctant to rely exclusively on those statements because they have not withstood the test of cross-examination.

Although the circumstantial evidence presented makes this a close case, on balance, the Minor's hearsay account falls short of what is required by the burden of proof. While the record established the facts of their underlying disagreement and the fact that Respondent's firearm was removed from its safe close in time to their heated argument, the tribunal cannot, on that alone, draw a conclusory inference that Respondent inappropriately displayed and pointed his firearm at his child and then trained it on himself. I note that the NYPD conducted only one relatively brief interview of the Minor in which less than five minutes was allocated to this incident. No probing questions were asked and the declarant mostly presented an uninterrupted narrative. Furthermore, no additional hearsay statements from the Minor or others, such as police reports or follow up interviews, were introduced into evidence. This made it especially difficult for this tribunal to determine indicia of reliability such as consistency over time. Moreover, her mother was not asked about this incident during her NYPD interview and she volunteered no information about it. The dearth of supporting evidence was only underscored by the Minor's

absence at trial and the fact that no cross-examination could be conducted. Accordingly, I find that this record failed to establish the misconduct set forth in Specification 4.

Failure to report an off-duty domestic incident

It is uncontested that on Saturday, August 22, 2020, the Minor's mother called Respondent to inform him that ACS was present at her home. Although Respondent testified that it was "common sense" to assume that the ACS visit was related to his use of corporal punishment, he claimed that he was unable to confirm that. He did, however, call his union delegate who advised him to get further information before reporting the ACS visit to the Department. He contended that ACS would not respond to his calls, even when he tried reaching out to the investigator from the Minor's prior ACS matter. He also confirmed that the mother advised him again on Monday, August 24, 2020 that ACS had come back to her home and that she asked him "Did anything else happen in your house?" to which he responded "I spanked her. I called you. You know exactly what happened." Still, it was only when his local child protective agency visited his home on August 26, 2020, that he notified his ICO. (Tr. 168-72) Accordingly, I find Respondent guilty of the charges set forth in Specification 6.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2012, has been found guilty of endangering the welfare of his 13 year-old daughter on two consecutive days in August 2020 by striking her with his hand and with a belt and failing to notify the Department of this incident. The Department Advocate has recommended that he be dismissed from the Department. As he was found not guilty of the firearm-related specification, a lesser, but still significant, penalty is warranted.

In making this penalty recommendation, I first note that I do not doubt that Respondent is a father who is deeply concerned about his daughter. Although serious, his own daughter stated that this incident was an aberration. Here, however, the record makes abundantly clear that over the course of less than 30 hours, Respondent repeatedly assaulted his daughter in a manner that was excessive, intolerable and constitutes sanctionable misconduct.

The presumptive penalty for a Physical Act of Domestic Violence/Family Offense is 30 suspension days, Dismissal Probation and participation in a 24-week counseling program; the aggravated penalty is up to and including Termination. There are aggravating factors present here—most notably that the victim in this case is a minor. Moreover, Respondent inflicted pain and physical injuries to his daughter's eye, face and buttocks during multiple outbursts on two consecutive days. Respondent has also been found guilty of not reporting this incident to the Department for several days after the involvement of ACS. Finally, while Respondent has no history of domestic or family violence, in 2016 he was found guilty of striking a handcuffed prisoner. For this misconduct, he forfeited 15 vacation days.

Having carefully weighed all relevant circumstances and facts in this matter, the tribunal recommends, consistent with the presumptive penalty in the Disciplinary Guidelines, that Respondent be DISMISSED from the New York City Police Department but that his dismissal

be held in abeyance for a period of one year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings; that Respondent be suspended without pay for 30 days and that he be required to attend the 24-week OASAS counseling program. Because of the aggravating factors present in this case, as well as the flagrant notification failure over multiple days, it is also fair and appropriate that Respondent forfeit the 31 days served on pretrial suspension without pay, for a total of 61 penalty days.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

AUG 01 2023

EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER NIKAURYS MARTINEZ
TAX REGISTRY NO. 953062
DISCIPLINARY CASE NO. 2020-22618

Respondent was appointed to the Department on July 11, 2012. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2019, 2020, and 2021.

In 2016, Respondent forfeited 15 vacation days after being found Guilty of improperly striking a handcuffed individual.

In connection with the instant matter, Respondent was suspended without pay from August 28 to September 27, 2020.

For your consideration.

Rosemarie Maldonado
Deputy Commissioner Trials